

24VECV02637 24VECV02637

County: los-angeles

Division: Civil Law and Motion

Department: O

Hearing date: 2026-09-21

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Case Number: 24VECV02637 Hearing Date: September 21, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

DANIEL DRAKE, an individual,

Plaintiff,

vs.

GALPIN JAGUAR LINCOLNMERCURY, INC., a California Corporation dba JAGUAR VAN NUYS, LAND ROVER VAN NUYS, GALPIN ASTON MARTIN, GALPIN LOTUS; JAGUAR LAND ROVER NORTH AMERICA, LLC, a Delaware Limited Liability Company; and DOES 1 through 10, inclusive,

Defendants.

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CASE NO.: 24VECV02637

ORDER GRANTING DEFENDANTS' MOTION TO TAX COSTS

I. BACKGROUND

Daniel Drake filed this lemon law action against Galpin Jaguar Lincoln-Mercury, Inc., d/b/a Jaguar Van Nuys, Land Rover Van Nuys, Galpin Aston Martin, Galpin Lotus ("LRVN") and Jaguar Land Rover North America, LLC ("JLRNA") (jointly, "Defendants"). Defendants move to tax Plaintiff's costs.

II. PROCEDURAL HISTORY

On June 5, 2024, Plaintiff filed a Complaint.

On June 24, 2025, Plaintiff filed a Notice of Settlement.

On July 29, 2026, Plaintiff filed a Memorandum of Costs.

On August 17, 2026, JLRNA filed the instant Motion to Tax Costs.

On September 8, 2026, Plaintiff filed an Opposition.

On September 14, 2026, JLRNA filed a Reply.

III. LEGAL STANDARD

The Song-Beverly Consumer Warranty Act authorizes recovery of costs “reasonably incurred by the buyer.” (Civ. Code § 1794(d).) [1] “If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary.” (*Ladas v. California State Auto. Assn.* (1993) 19 Cal. App. 4th 761, 774.) “On the other hand, if the items are properly objected to, they are put in issue, and the burden of proof is on the party claiming them as costs.” (*Id.*)

“[T]he mere filing of a motion to tax costs may be a ‘proper objection’ to an item, the necessity of which appears doubtful, or which does not appear to be proper on its face. [citation.] However, ‘[i]f the items appear to be proper charges, the verified memorandum is prima facie evidence that the costs, expenses and services therein listed were necessarily incurred by the defendant [citations], and the burden of showing that an item is not properly chargeable or is unreasonable is upon the [objecting party].’” (*Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 131.)

IV. ANALYSIS

JLRNA moves to tax costs in the entire amount of \$2,020.70 on grounds Plaintiff did not timely serve its Memorandum of Costs and Motion for Attorney’s Fees. JLRNA cites Rules of Court, rule 3.1702(b)(1), which governs deadlines for a motion for attorney’s fees, and rule 3.1700(a)(1), which governs deadlines for a memorandum of costs. (See Mot. at 2:17-3:1.) JLRNA argues because Plaintiff voluntarily stipulated to dismiss the case without prejudice on November 10, 2025, his deadline to file and serve its Memorandum of Costs and Motion for Attorney’s Fees seeking costs, was May 11, 2026. (See Mot. at 3:10-20, citing *Matthew Hatlegiv v. General Motors LLC* (2026) 118 Cal.App.5th 644, 649.)

In opposition, Plaintiff argues the November 10, 2025, dismissal did not trigger the 180-day deadline because the Court dismissed the action without prejudice pursuant to § 664.6 and consistent with the parties’ 998 Offer. (See Opp. at 3:9-17.) Plaintiff argues § 664.6 expressly permits a court to dismiss an action without prejudice and retain jurisdiction “until performance in full of the terms of the settlement.” (See Mot. at 3:9-17.) Plaintiff submits a copy of the 998 Offer providing for Plaintiff’s “recoverable court costs, expenses, and reasonably incurred attorney fees pursuant to Civil Code section 1794(d) to be determined by the Court by way of a noticed motion...” (Declaration of Laura E. Goolsby filed July 29, 2026, ¶ 13, Ex. C at ¶ 1.) Plaintiff also points out the 998 Offer provides “Upon receipt of the Settlement Amount and Attorney’s Fees Amount, Plaintiff will execute and file a request for dismissal with prejudice of the Action in its entirety.” (*Id.*, ¶ 13, Ex. C at ¶ 6.) Plaintiff argues *Hatlegiv* is distinguishable because the dismissal in that action occurred in 2023, before the current version of § 664.6 became operative. (See Mot. at 4:9-17.) Plaintiff argues even if the Court concludes Rule 3.1700 precludes recovery of costs through the Memorandum of Costs, Plaintiff can still separately recover costs pursuant to Civil Code § 1794(d). (See *id.*, at 5:1-4.)

In reply, JLRNA argues Plaintiff provides no authority that Rules 3.1702 and 3.1700 do not apply to Code of Civil Procedure § 1794(d). JLRNA argues the Hatlevig Court also dismissed the complaint without prejudice and the parties in that case agreed that fees would be determined upon noticed motion. JLRNA argues Plaintiff does not explain why the dismissal pursuant to § 664.6 is material. (See *id.*, at 1:15-27.)

The Court will grant the Motion. Rules of Court, rule 3.1700, provides “A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after...the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first.”

Rules of Court, rule 3.1702, governs claims for statutory attorney fees in civil cases. “A notice of motion to claim attorney’s fees for services up to and including the rendition of judgment in the trial court—including attorney’s fees on an appeal before the rendition of judgment in the trial court—must be served and filed within the time for filing a notice of appeal under rules 8.104 and 8.108 in an unlimited civil case or under rules 8.822 and 8.823 in a limited civil case.” (Rules of Court, rule 3.1702(b)(1).) The clock starts to run on the time to move for attorney fees from either the service of notice of entry of judgment or dismissal, starting a 60-day clock under the rule governing attorney fees, or, if no such notice is given, the entry of judgment or dismissal, starting a 180-day clock under the rule. (See *Hatlevig v. General Motors LLC* (2026) 118 Cal.App.5th 644, 649 [discussing rule 3.1702(b)(1)].) “A voluntary dismissal is ‘effectively a “judgment”’ within the meaning of the rule prescribing the time to appeal.” (*Id.*)

Hatlevig recognized that “[plaintiff] had at most 180 days after the dismissal to serve and file his motion.” (*Id.*, at 650; see *Catlin Ins. Co., Inc. v. Danko Meredith Law Firm, Inc.* (2022) 73 Cal.App.5th 764, 781 [“Rule 3.1702(b)(1) and (c)(1) specify a bifurcated set of deadlines that establish an ‘an outer time limit after judgment within which statutory fee claims [may] be made.’...These deadlines are triggered by the ‘conclusion of the litigation’”]; *Carpenter v. Jack in the Box Corp.* (2007) 151 Cal.App.4th 454, 468 [“The history of rule 3.1702 indicates that the “outside” time limit for claiming prejudgment statutory attorney fees was intended to be entry of a final judgment—not entry of a prejudgment appealable order.”])

As an initial matter, because parties in lemon law actions generally agree to determine fees and costs by way of a noticed motion, as occurred here, the Court generally does not strictly apply the requirement that a memorandum of costs must be filed and that it be subject to the 15-day deadline in rule 3.1700 deadline since the parties arguably conceded to not follow the standard memorandum procedure for requesting costs. However, as the parties agreed to determine fees and costs by noticed motion and Plaintiff’s fee motion requests costs, the Court does apply the deadline in rule 3.1702 to determine whether Plaintiff’s requests for costs is untimely. Accordingly, although this briefing is brought with respect to Plaintiff’s claimed costs, the Court’s ruling on timeliness here applies the same to the pending Motion for Attorney’s Fees, which is the agreed upon method for determining costs in this lemon law action.

The Court finds Hatlevig is controlling. In Hatlevig, the parties reached settlement, agreed that plaintiff was the prevailing party for purposes of attorney fees, and agreed that defendant would pay plaintiff the amount of fees determined by the trial court upon noticed motion. (See *Hatlevig*, 118 Cal.App.5th at 646.) Because the plaintiff served the motion beyond the 180-day deadline specified by Rules of Court, rules 3.1702 and 8.104(a)(1), the Court of Appeal affirmed the motion for attorney fees was untimely. (See *id.*, at 650.)

Plaintiff’s reliance on Code of Civil Procedure § 664.6 as a basis to depart from the requirements of rule 3.1702(b)(1), is not persuasive. Plaintiff cites no authority establishing § 664.6 creates an exception to the rule governing attorney fee motions. Hatlevig did not address § 664.6 in any respect, and Plaintiff offers no support for the assumption the settlement in Hatlevig omitted a § 664.6 provision, or that its presence or absence would had any bearing on that court’s analysis. Accordingly, that this Court retained jurisdiction to enforce the parties’ settlement, including an attorneys’ fee dispute, does not disturb rule 3.1702’s deadline. Though the Court retained jurisdiction under § 664.6 to hear and decide an attorneys’ fees motion as provided for by the terms of a settlement agreement, a party must still timely file its motion.

Here, the date of dismissal for purposes of starting the clock on the time Plaintiff had to seek costs was November 10, 2025, when the Court dismissed the action without prejudice pursuant to Code of Civil Procedure § 664.6. (See November 10, 2025, Minute Order [notice waived].) Plaintiff filed and served its Memorandum of Costs and Motion for Attorney’s Fees on

July 29, 2026. Because Plaintiff had at most 180 days to file his motion seeking fees and costs and the Memorandum of Costs was filed 261 days after the date of dismissal, Plaintiff's request for costs is untimely.

Based on the foregoing, the Court GRANTS JLRNA's Motion to Tax Costs.

V. CONCLUSION

Based on the foregoing, the Court the Court GRANTS JLRNA's Motion to Tax Costs.

IT IS SO ORDERED.

DATED: September 21, 2026

Hon. Michael R. Amerian

Judge, Superior Court

[1] All statutory references are to California codes unless stated otherwise.